

# Oklahoma Marketable Record Title Act

Clearing Title Through the Record · 16 O.S. §§ 71 through 80



## What the Act does

The Marketable Record Title Act is a curative statute. Its purpose is to let a title examiner rely on a limited span of the record instead of running every chain back to the sovereign. If a person holds an unbroken chain of record title running at least thirty years from a root of title, that person has marketable record title, and older claims that depend on something that happened before the root are extinguished. Oklahoma adopted the Act in 1963 and has amended it since. It is a statute of repose, so after thirty years it cuts off the right itself, not just the remedy. The Act is codified at 16 O.S. §§ 71 through 80.

## How it works

| Step                           | What to do                                                                                                                                                                                                                                                           |
|--------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Find the root of title         | The root of title is the most recent conveyance or other title transaction that purports to create the interest and that was recorded at least thirty years before the date marketability is being tested. Its effective date is the date it was recorded. (§ 16-78) |
| Confirm an unbroken chain      | From the root forward, the record has to show an unbroken chain into the present owner, with nothing of record purporting to divest that owner. (§ 16-71)                                                                                                            |
| Extinguish the pre-root claims | Once those conditions are met, the owner holds title free and clear of interests, claims, and charges that depend on any act, transaction, event, or omission before the effective date of the root of title. (§ 16-73)                                              |

## What the Act does not wipe out

Several categories survive even a clean thirty year root. These are the exceptions a landman has to watch, because assuming the Act cleared them is how title gets missed.

| Survives                              | Why                                                                                                                                                                                                                                                          |
|---------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Interests in the record chain itself  | Anything shown in the muniments that make up the thirty year chain stays alive, as long as it is specifically identified. A general reference in a later deed, without a specific identification, does not by itself preserve an old interest. (§ 16-72)     |
| Severed mineral and royalty interests | The Act expressly does not bar a severed mineral or royalty interest. A properly severed mineral interest is not extinguished just because the surface chain has a clean thirty year root, so do not treat MRTA as clearing a mineral reservation. (§ 16-76) |
| Interests preserved by notice         | An interest whose holder filed a proper notice of claim within the thirty years after the root, or who held thirty years of continuous possession, is preserved. (§§ 16-72, 16-74)                                                                           |

| Survives                                   | Why                                                                                                                                                                                 |
|--------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Lessor reversions, easements, restrictions | The reversionary right of a lessor when a lease ends, along with easements, reserved rights, and recorded use restrictions, are among the interests the Act does not bar. (§ 16-76) |
| Interests arising after the root           | Anything created or recorded after the effective date of the root, and rights of the United States, are outside what the Act extinguishes. (§§ 16-72, 16-76)                        |

## Preserving a pre-root interest

| Method                       | How                                                                                                                                                                                                                                                                      |
|------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Notice of claim              | The holder of an interest that predates the root files a written notice, verified by oath, stating the nature of the claim, within the thirty years following the root's effective date. Lack of knowledge or a legal disability does not extend the deadline. (§ 16-74) |
| Contents and recording       | The notice has to carry an accurate legal description, or reference a recorded instrument that has one, and it is filed and indexed in the county where the land lies, with the claimant indexed as grantee. (§ 16-75)                                                   |
| Possession                   | Thirty years of continuous possession by the record owner of an interest serves the same preserving function as a filed notice. (§ 16-74)                                                                                                                                |
| Answer to a stray instrument | A stray recorded instrument from someone not otherwise in the chain does not become a root of title against a current owner who records an affidavit claiming possession and denying the stray claim. (§ 16-76)                                                          |

## Key definitions · 16 O.S. § 78

| Term                    | Meaning                                                                                                                                                                                                                         |
|-------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Root of title           | The title transaction in a person's chain that purports to create the interest claimed and that was the most recent to be recorded as of thirty years before marketability is tested. Its effective date is its recording date. |
| Marketable record title | A title of record that the Act declares marketable, held subject only to the matters the Act preserves.                                                                                                                         |
| Title transaction       | Any transaction affecting title, including a deed, will, decree, tax deed, trustee's or sheriff's deed, or lease, that appears of record.                                                                                       |
| Records                 | Probate and other official public records as well as the records of the county clerk.                                                                                                                                           |

## Notes for title work

| Topic                                        | Note                                                                                                                                                                                                                      |
|----------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>A tool, not a substitute for the exam</b> | The Act shortens what you have to rely on, but you still read the chain from the root forward and note every exception. It clears old, dependent claims; it does not tell you the current owner is good without the work. |
| <b>Watch the severed minerals</b>            | The single most important MRTA point for a mineral title. A clean surface root does not extinguish a severed mineral or royalty interest. Chase the mineral chain on its own.                                             |
| <b>General references do not preserve</b>    | A vague nod to a prior interest in a later deed does not keep that interest alive. The interest has to be specifically identified in the muniments to stay in the chain.                                                  |

This reference is prepared for use by landmen and title professionals as a working field tool. It is not legal advice and does not substitute for the advice of qualified Oklahoma oil and gas counsel. The Marketable Record Title Act interacts with severed minerals, possession, and prior conveyances in ways that turn on the specific record, and reliance on the Act to extinguish or preserve an interest should be confirmed with a licensed Oklahoma attorney. Statute citations are to 16 O.S. §§ 71 through 80; verify against the current text.